

SENATE No. 1359

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to municipal unemployment insurance reform.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 1359

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1359) of Michael O. Moore for legislation relative to municipal unemployment insurance reform. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to municipal unemployment insurance reform.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 28A of said chapter 151A of the General Laws, as appearing in the
2 2022 Official Edition, is hereby amended by inserting after subsection (d) the following:-

3 “(e) with respect to any services described in subsections (a) and (b) that are provided by
4 municipal employees to or on behalf of an educational institution, benefits shall not be paid to
5 any individual under the same circumstances as described in subsections (a) through (c).”

6 SECTION 2. Section 29 of said chapter 151A of the General Laws, as so appearing, is
7 hereby amended by inserting after subsection (d)(6) the following:-

8 “(7) Notwithstanding any of the foregoing provisions of this subsection, the amount of
9 benefits otherwise payable to an individual for any week that begins in a period with respect to
10 which such individual is receiving governmental or other pension, retirement or retired pay,
11 annuity, or any other similar periodic payment from a defined benefit plan that is based on the
12 previous work of such individual for the separating employer or for a base period employer shall

13 be reduced by an amount equal to 65 percent of the amount of such payment that is reasonably
14 attributable to such week; provided, however, that such reduction shall apply only when such
15 separating or base period employer employed the individual for at least 75 percent of the
16 individual's total length of service on which the defined benefit plan is based; and provided,
17 further that such reduction shall apply only if, and to the extent, then consistent with section
18 3304(a)(15) of the Internal Revenue Code of 1954. Payments received under the Social Security
19 Act shall not be subject to this paragraph.”